**UWEZO LINK INITIATIVE: POLICY FRAMEWORK**

## 1. Introduction and Strategic Context

### 1.1 About Uwezo Link Initiative

**Uwezo Link Initiative** is a youth-led Community Based Organization (CBO) in Kenya operating with the distinct mission of Empowering Youth Through STEM Innovation. The organization bridges the gap between grassroots community needs and high-level technological advancement by deploying an operational model that combines physical community engagement with digital solutions.

**Key program pillars include:**

- **Uwezo Voucher:** A blockchain-powered solution addressing period poverty and promoting educational equity by providing transparent, digital vouchers for essential supplies.
- **Uwezo Fab Lab:** A mobile fabrication laboratory that empowers youth to turn electronic waste (e-waste) into climate-resilient hardware solutions, directly linking STEM skills with environmental action.
- **Uwezo Teaching:** A community-based education program deploying mobile educators to address the digital economy gap in underserved areas. Educating on digital skills and Artificial Intelligence

As a youth-led entity, Uwezo Link channels civic energy into constructive development, ensuring that young people are not merely beneficiaries but active architects of Kenya's digital future.

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### 1.2 Purpose and Scope of this Policy Framework

This document outlines the non-negotiable standards and procedures that govern how the organization manages its people, finances, and beneficiaries. Specifically, this framework covers:

- **Child Safeguarding:** Protocols to ensure the safety of children in both physical maker spaces and online learning environments.
- **Human Resources:** Clear distinctions between volunteers, interns, and employees to comply with Kenyan labor laws.
- **Financial Management:** Internal controls for handling donor funds, including specific guidelines for mobile money (M-PESA) transactions.
- **Program Quality:** Guidelines for gender-responsive pedagogy to ensure girls are actively included in STEM.
- **Data Protection:** Compliance with the Kenya Data Protection Act (2019) regarding beneficiary data.

### 1.3 Why This Policy Framework is Important

Transitioning from a grassroots youth group to a professional institution requires more than just passion; it requires structure. Some of the reasons why this policy framework is critical:

1. **Legal Compliance:** It ensures Uwezo Link adheres to the **Employment Act (2007)**, **Children Act (2022)**, and **Data Protection Act (2019)**, protecting the organization from liability in an increasingly regulated Kenyan non-profit sector.
2. **Operational Safety:** Given Uwezo Link's focus on technology and youth, specific risks such as online grooming, data privacy breaches, and e-waste handling must be managed proactively to protect the organization's reputation and its beneficiaries.

## 2. Child Safeguarding and Protection Policy

### 2.1 Rationale and Scope

This policy is aligned with **UNICEF's Child Safeguarding Standards**, the **Malala Fund's safeguarding framework**, and the **Constitution of Kenya (Article 53)**, which mandates that the best interest of the child is paramount in all matters concerning the child. It applies to all staff, volunteers, interns, partners, and contractors.

### 2.2 Definitions

- **Child:** Any human being below the age of 18 years, as defined by the Children Act (2022).
- **Abuse:** Includes physical, sexual, emotional abuse, and neglect.
- **Sexual Exploitation:** Any actual or attempted abuse of a position of vulnerability, differential power, or trust, for sexual purposes, including, but not limited to, profiting monetarily, socially, or politically from the sexual exploitation of another. This definition is drawn directly from UN PSEA (Protection from Sexual Exploitation and Abuse) standards.
- **Grooming:** The process of deliberately establishing an emotional connection with a child to lower their inhibitions for the purpose of sexual abuse. This often happens online in STEM/digital contexts, where abusers may pose as mentors or peers.

### 2.3 Prevention Measures

Prevention is the primary goal of this policy. By creating a safe environment, Uwezo Link minimizes the opportunity for abuse to occur.

#### 2.3.1 Recruitment and Vetting

- **Criminal Record Checks:** All staff and volunteers interacting with children must provide a current Certificate of Good Conduct from the Directorate of Criminal Investigations (DCI) in Kenya. No individual with a record of offenses against children or violent crimes shall be engaged.
- **Reference Checks:** At least two professional references must be contacted, with specific questions asked regarding the applicant's suitability to work with children. "Do you know of any reason why this person should not work with minors?" is a mandatory question.

- **Self-Declaration:** All personnel must sign a self-declaration form disclosing any past investigations or convictions related to abuse or violence. Providing false information on this form is grounds for immediate dismissal.

### 2.3.2 Code of Conduct with Children

- **Two-Adult Rule:** No adult shall be alone with a child in a closed room. If one-on-one mentoring is necessary, it must occur in an open, visible space or with the door open. This protects both the child from abuse and the adult from false accusations.
- **Physical Contact:** Physical contact should be minimal, appropriate, and public. Inappropriate touching, even under the guise of "congratulations" or "comfort," is prohibited. Handshakes and "high-fives" are acceptable; sitting on laps, explicit hugging or kissing is not.
- **Digital Communication:** There shall be **no direct private electronic communication** (WhatsApp, DM, Email) between staff/volunteers and children under 13. For children aged 13-17, communication must be limited to professional platforms (e.g., official Google Classroom, Slack) and should ideally include a parent or a second staff member.
- **Photography:** No images of children shall be taken or published without the informed written consent of the parent/guardian and the assent of the child. Images must be dignified and not portray children as helpless victims. Metadata (GPS location) should be stripped from photos before posting on social media to prevent tracking.

## 2.4 Reporting and Response Mechanism

A safeguarding policy is only effective if the reporting mechanism is trusted and accessible.

### 2.4.1 Reporting Channels

- **Designated Safeguarding Focal Point (DSFP):** Uwezo Link shall appoint a male and a female DSFP to receive reports. Their contact details must be displayed in all activity centres. These individuals must receive specialized training in handling disclosures.
- **National Helpline:** All staff must be aware of and ready to use the **Childline Kenya 116** toll-free number for reporting abuse cases. This is the government-mandated channel for escalating child protection concerns.

- **Anonymous Reporting:** An anonymous suggestion box or digital form (e.g., Google Form) shall be available for youth to report concerns without fear of retaliation.

### 2.4.2 Response Protocol

1. **Immediate Safety:** If a child is in immediate danger, the priority is to secure their safety and medical attention.
2. **Listen and Record:** If a child discloses abuse, the staff member must listen without judgment, not ask leading questions, and record the details immediately using the child's own words. Do not promise absolute confidentiality, as the law requires reporting.
3. **Referral:**
    - **Medical:** Refer to the nearest Gender Violence Recovery Centre (e.g., relevant county referral hospitals) within 72 hours for post-rape care. This is critical for HIV prophylaxis and forensic evidence collection.
    - **Legal/Police:** Report to the nearest Police Station (Gender Desk) and obtain an OB (Occurrence Book) number.
    - **Psychosocial:** Refer to counselling partners (e.g., Childline Kenya partners).
4. **Suspension:** Any staff member accused of abuse shall be immediately suspended pending investigation.

## 2.5 Digital Safety and Cyber-Protection

As a STEM organization, Uwezo Link exposes beneficiaries to the internet. This creates a duty of care regarding online risks.

### 2.5.1 Online Safety Guidelines

- **Filtering:** All internet access provided by Uwezo Link (e.g., in maker spaces) must have adult content filters enabled.
- **Education:** Every STEM curriculum module must include a Digital Citizenship component, teaching children about password security, cyberbullying, and privacy settings.
- **Device Management:** Tablets/laptops used by children should have monitoring software installed, and children should be informed that their activity is monitored for safety.

- **Data Minimization:** Uwezo Link shall not collect more personal data from children than is strictly necessary for program delivery. Biometric data (e.g., fingerprints for attendance) should be avoided for minors unless absolutely necessary and securely encrypted.

## 3. Human Resources, Volunteer, and Internship Management

### 3.1 Legal Framework and Distinctions

According to Kenya's **Employment Act (2007)**, misclassifying employees as "volunteers" can lead to severe legal and financial penalties. Courts have increasingly ruled that if a person works fixed hours, receives a regular "stipend" that functions as a salary, and is under the supervision of the employer, they are employees regardless of what the contract says. This policy clarifies the status of different personnel to mitigate legal risk.

- **Employee:** Anyone with a contract of service, receiving a regular salary, and subject to control regarding hours and work methods. Entitled to NSSF, NHIF, Housing Levy, and Leave.
- **Intern:** A person engaged for learning and gaining practical experience. Recent court rulings have affirmed that interns can be considered employees if the engagement lacks a clear training structure and resembles a job. Therefore, internship agreements must explicitly state they are for **learning purposes** and have a fixed duration (usually 3-6 months).
- **Volunteer:** A person who offers services freely without expectation of remuneration. Reimbursement for expenses (transport/lunch) does not constitute a salary.

### 3.2 Recruitment Policy

#### 3.2.1 Principles

- **Equal Opportunity:** Recruitment is open to all qualified candidates without discrimination based on gender, ethnicity, religion, or disability.
- **Youth Prioritization:** For entry-level roles, priority is given to youth (18-35) to align with the organization's mission.
- **Affirmative Action:** Qualified female candidates in STEM roles shall be encouraged to apply to bridge the gender gap in tech. The organization aims for a 50/50 gender balance in its technical teaching staff.

### 3.2.2 Procedure

1. **Job Analysis:** Clear Terms of Reference (ToR) or Job Descriptions must be created before advertising.
2. **Advertising:** Vacancies must be circulated publicly (e.g., website, social media, community notice boards).
3. **Shortlisting:** A panel of at least three people (mixed gender) shall shortlist candidates.
4. **Interview:** Interviews should assess both technical skills and alignment with organizational values (safeguarding, integrity).
5. **Background Checks:** Mandatory for all roles (as per Safeguarding Policy).

## 3.3 Volunteer Management Policy

### 3.3.1 Engagement

- Volunteers shall sign a **Volunteer Agreement**, not an employment contract. This agreement must state: "This arrangement is voluntary and does not create an employment relationship. There is no expectation of employment at the end of the volunteer period".
- Volunteers shall receive a detailed induction into the Code of Conduct and Safeguarding Policy.

### 3.3.2 Allowances and Taxation

- **Reimbursements:** Uwezo Link may provide a daily stipend to cover transport and lunch.
- **Tax Implications:** The Kenya Revenue Authority (KRA) may view regular, flat-rate stipends as taxable income. To avoid liability, stipends should be:
    - Reasonable and clearly tied to costs
    - Supported by a policy defining them as "reimbursement of costs" rather than "payment for work".

## 3.4 Internship Policy

### 3.4.1 Objectives

To provide university/college students and recent graduates with practical STEM education and non-profit management experience.

### 3.4.2 Structure

- **Duration:** Maximum 6 months, non-renewable.
- **Mentorship:** Every intern must be assigned a supervisor/mentor.
- **Learning Plan:** A clear learning plan with objectives must be agreed upon in week 1.
- **Stipend:** Interns may receive a monthly stipend. This stipend is subject to NHIF, NSSF, and Housing Levy deductions as per current Kenyan law, to protect the organization from litigation. Although the intern takes home less, this ensures they are covered for health (SHIF) and retirement (NSSF) and legitimizes their status.

### 3.5 Sexual Harassment and PSEA (Protection from Sexual Exploitation and Abuse)

Uwezo Link maintains a **Zero Tolerance** policy.

- **Sexual Harassment:** Unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature in the workplace.
- **Sexual Exploitation:** Actual or attempted abuse of a position of vulnerability for sexual purposes.
- **Prohibition:** Sexual relationships between staff and beneficiaries (students, mentees) are strictly prohibited, regardless of the age of consent, due to the power imbalance. A "teacher" dating a "student" is grounds for immediate dismissal, even if the student is 18+.
- **Reporting:** Staff can report harassment to the HR lead or a designated Board member. Protection against retaliation (whistleblower protection) is guaranteed.

## 4. Financial Management and Control Policy

### 4.1 Overview

This policy ensures the transparent, efficient, and accountable use of Uwezo Link Initiative's resources. It is designed to meet international fiduciary standards and ensure the highest level of transparency.

### 4.2 Banking and Funds Management

- **Bank Accounts:** The organization shall maintain accounts with a reputable commercial bank.

- **Signatories:** There shall be three signatories (Executive Director, Co-Founders/ Finance lead). All withdrawals or transfers require **two signatories** (Mandatory).
- **Segregation of Funds:** Donor funds for specific projects (restricted funds) must be tracked separately in the accounting system (e.g., QuickBooks or Excel ledgers). Project funds should not be co-mingled with general administrative funds to ensure clean audits.

### 4.3 Mobile Money (M-PESA) Policy

Given the prevalence of M-PESA in Kenya, strict controls are needed to prevent fraud. Personal M-PESA lines must never be used for organizational business.

- **Paybill/Till Number:** Uwezo Link shall use a registered Paybill or Buy Goods number linked to the organization's bank account.
- **B2C Disbursements:** Bulk payments (e.g., volunteer transport, beneficiary support) should be made using the M-PESA Bulk Payment system (B2C). This system allows for the upload of Excel sheets, reducing input errors, and provides a clear digital audit trail that personal transfers do not.
- **Approvals:** Initiating and approving M-PESA transactions should be done by different people (Maker-Checker system) via the online portal.

### 4.4 Procurement Policy

To ensure value for money and prevent corruption, procurement follows a tiered system. This aligns with the Public Procurement and Asset Disposal Act principles, adapted for a CBO.

#### 4.4.1 Thresholds (Indicative in KES)

| Procurement Category | Estimated Value (KES) | Method | Approval Authority |
|---|---|---|---|
| **Petty Cash** | 0 - 5,000 | Direct Purchase (Cash) | Project Coordinator |
| **Low Value** | 5,001 - 50,000 | 3 Verbal Quotes (Documented) | Treasurer/Finance Officer |
| **Medium Value** | 50,001 - 500,000 | 3 Written Quotations (RFQ) | Procurement Committee |

| Procurement Category | Estimated Value (KES) | Method | Approval Authority |
|---|---|---|---|
| **High Value** | 500,001+ | Open Tender / Restricted Tender | Full Management Committee |

### 4.4.2 Vendor Selection

- Vendors must be pre-qualified annually based on legal status, tax compliance (KRA PIN/Tax Compliance Certificate), and past performance.
- **Conflict of Interest:** Staff involved in procurement must declare any relationship with suppliers.
- **Affirmative Procurement:** Uwezo Link shall prioritize youth-owned and women-owned businesses (AGPO - Access to Government Procurement Opportunities principles) where possible to support the local ecosystem.

### 4.5 Petty Cash

- **Float Limit:** A maximum float of KES 20,000 shall be held.
- **Custody:** The Office Administrator/Finance Assistant is the custodian.
- **Reconciliation:** Petty cash must be reconciled weekly. Cash counts must be witnessed by a second person.
- **Vouchers:** No cash shall be released without a signed petty cash voucher explaining the expense.

### 4.6 Asset Management

- **Asset Register:** All equipment (laptops, robotics kits, furniture) costing over KES 5,000 must be tagged and recorded in a Fixed Asset Register.
- **Personal Use:** Organizational assets are for official use only. Taking laptops home requires authorization.
- **Disposal:** Assets can only be disposed of (sold/donated) upon resolution of the Management Committee. Disposal to staff members must be at fair market value and transparent. E-waste must be disposed of via NEMA-licensed handlers.

## 5. Program Quality and Gender-Responsive STEM Education

### 5.1 Gender-Responsive Pedagogy (GRP)

Uwezo Link aims to close the gender gap in STEM. This requires deliberate pedagogical strategies aligned with **Plan International** and **UNESCO** guidelines. Merely inviting girls is insufficient; the teaching environment must be actively inclusive.

#### 5.1.1 Classroom Practices

- **Equal Participation:** Facilitators must ensure girls and boys participate equally in hands-on activities. "Helper" roles (e.g., cleaning up, taking notes) should be rotated so girls are not relegated to passive tasks while boys use the equipment. Facilitators should be trained to notice who is holding the screwdriver and who is holding the clipboard.
- **Language:** Use gender-neutral or inclusive language (e.g., "scientists" instead of "men of science").
- **Role Models:** STEM curriculums should feature examples of female scientists and engineers, particularly African women, to combat the stereotype that technology is a Western or male domain.

#### 5.1.2 Safe Spaces

- Maker spaces must be physically safe and accessible for girls. This includes having private, clean sanitation facilities nearby, which is often a barrier to girls' participation in community centers.
- Scheduling of programs should consider girls' domestic responsibilities and safety (e.g., ending before dark).

### 5.2 Environmental Sustainability and Green Skills

Uwezo Link recognizes the climate crisis and integrates sustainability into its operations and curriculum.

- **Green Skills:** The STEM curriculum shall include modules on renewable energy, climate tech, and environmental science. Youth should use STEM to solve local environmental challenges (e.g., coding apps for waste management).
- **E-Waste Management:** As a tech organization, Uwezo Link generates electronic waste. The organization commits to disposing of broken electronics only through NEMA-licensed e-waste recyclers.

- **Paperless Operations:** Administrative workflows (leave applications, reports) shall be digital to minimize paper use.

## 6. Data Protection and Information Privacy

### 6.1 Compliance with the Data Protection Act (2019)

Uwezo Link collects personal data (names, ages, photos) of beneficiaries. This policy ensures compliance with the **Office of the Data Protection Commissioner (ODPC)** in Kenya.

### 6.2 Principles of Data Processing

- **Lawfulness:** Data is collected only with consent.
- **Purpose Limitation:** Data collected for a specific program (e.g., coding bootcamp) cannot be sold or used for unrelated marketing.
- **Data Minimization:** Only collect what is needed. Do not ask for intrusive family details unless necessary for vulnerability assessment.
- **Storage Limitation:** Beneficiary data shall be retained only as long as necessary for reporting and audit (typically 5-7 years), then securely deleted/shredded.

### 6.3 Consent Protocols

- **Minors:** For any child under 18, data collection requires the signed consent of a parent/guardian.
- **Informed Consent:** Parents must be told why data is collected, who sees it, and how it is stored.
- **Opt-Out:** Beneficiaries have the right to withdraw consent at any time without losing access to the program.

### 6.4 Data Security

- **Physical:** Paper files (consent forms) must be kept in locked cabinets.
- **Digital:** Databases (Excel, CRM) must be password-protected. Access is restricted to relevant program staff only.
- **Breach Notification:** Any data breach (e.g., lost laptop with beneficiary list) must be reported to the ODPC within 72 hours if it poses a risk to the subjects.

## 7. Stakeholder Engagement and Partnership

### 7.1 Partnership Principles

Uwezo Link seeks partnerships that are ethical and aligned with its mission.

- **Due Diligence:** Before formalizing a partnership, Uwezo Link will screen potential partners for alignment on safeguarding and anti-corruption values.
- **MOU:** All partnerships shall be governed by a Memorandum of Understanding (MOU) detailing roles, resource sharing, and dispute resolution.

### 7.2 Youth Participation

- **Nothing About Us Without Us:** Youth beneficiaries shall be involved in the design and evaluation of programs.
- **Feedback Mechanisms:** Regular town halls or surveys will be conducted to gather feedback from the community.

## 8. Appendices and Procedural Templates

### 8.1 Appendix A: Incident Report Form

- Fields: Date, Time, Location, Nature of Incident (Safeguarding/Accident/Security), Persons Involved, Description, Immediate Action Taken, Reporter's Signature.

### 8.2 Appendix B: Volunteer Agreement Template

- Clauses: "Nature of Relationship" (Volunteer), "Duties", "Confidentiality", "Code of Conduct", "Termination", "Disclaimer of Employment".

### 8.3 Appendix C: Conflict of Interest Declaration Form

- Annual declaration for all Board and Staff members to list other board memberships, business interests, and family relations in the sector.

### 8.4 Appendix D: Consent Form for Photography/Data

- Clear checkboxes for: "I consent to my child's photo being taken," "I consent to the photo being used on social media," "I consent to their name being used."

## 9. Implementation and Review

### 9.1 Adoption

These policies came into force in **November 2025**, following approval by the Management Committee of Uwezo Link Initiative.

### 9.2 Training

All current and new staff/volunteers must undergo mandatory training on these policies, specifically Safeguarding and Finance, within 30 days of joining.

### 9.3 Review

This policy manual is a living document. It shall be reviewed annually or upon significant changes in Kenyan law (e.g., changes to the Finance Act or Children Act).

**For Policy Enquiries or Safeguarding Reports:**

Please contact the Designated Safeguarding Focal Point or the Secretariat at **info@uwezolinkinitiative.org** or call **+254 799052996**

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